

CV-25-002126 CNH INDUSTRIAL CAPITAL AMERICA LLC vs MCDONALD, JAMES ROY - Plaintiff's Motion for Order to Show Cause re: Contempt - GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Request for Judicial Notice Plaintiff's Request for Judicial Notice is GRANTED. The Court takes judicial notice of the June 30, 2025 default judgment and the proof of service showing service of that judgment pursuant to Evidence Code section 452(d). Merits The unopposed motion is GRANTED. The Court finds that Plaintiff has made a prima facie showing that: 1. A valid default judgment was entered on June 30, 2025 containing a turnover provision specifically directed to James Roy McDonald a/k/a James R. McDonald a/k/a James McDonald a/k/a Jim McDonald requiring him to deliver possession of the New Holland Model U80C Loader, serial number JJGNU80CAM767600, or its proceeds, to Plaintiff. 2. McDonald received notice of that judgment through personal service. 3. Plaintiff has submitted evidence supporting a prima facie showing that McDonald had the ability to comply with the turnover provision. 4. Plaintiff has submitted evidence supporting a prima facie showing that McDonald failed to comply with the turnover provision despite notice of the Court's order. Accordingly, the Court finds sufficient grounds to institute contempt proceedings and SETS for September 30, 2026 at 8:30 am in Department 24 an Order to Show Cause directing James Roy McDonald a/k/a James R. McDonald a/k/a James McDonald a/k/a Jim McDonald to appear and show cause, if any exists, why he should not be adjudged in contempt for violation of the turnover provision contained in the June 30, 2025 judgment. The Court expresses no opinion regarding whether contempt ultimately will be established. The ruling is limited to whether Plaintiff has shown sufficient grounds for issuance of an OSC. Plaintiff must file a proof of service at least five court days before the OSC date showing personal service of the signed order on the alleged contemnor no later than 16 court days before the hearing date. The Judgment Debtor may file and serve a written opposition to the Order to Show Cause no later than nine court days before the OSC date. If an opposition is filed, the Judgment Creditor may file and serve a reply brief no later than five court days before the OSC date. Plaintiff is directed to submit a new proposed order within five court days that is consistent with this ruling.

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Request for Judicial Notice

Plaintiff's Request for Judicial Notice is GRANTED. The Court takes judicial notice of the June 30, 2025 default judgment and the proof of service showing service of that judgment pursuant to Evidence Code section 452(d).

Merits

The unopposed motion is GRANTED.

The Court finds that Plaintiff has made a prima facie showing that:

1. A valid default judgment was entered on June 30, 2025 containing a turnover provision specifically directed to James Roy McDonald a/k/a James R. McDonald a/k/a James McDonald a/k/a Jim McDonald requiring him to deliver possession of the New Holland Model U80C Loader, serial number JJGNU80CAM767600, or its proceeds, to Plaintiff.

2. McDonald received notice of that judgment through personal service.

3. Plaintiff has submitted evidence supporting a prima facie showing that McDonald had the ability to comply with the turnover provision.

4. Plaintiff has submitted evidence supporting a prima facie showing that McDonald failed to comply with the turnover provision despite notice of the Court's order.

Accordingly, the Court finds sufficient grounds to institute contempt proceedings and SETS for September 30, 2026 at 8:30 am in Department 24 an Order to Show Cause directing James Roy McDonald a/k/a James R. McDonald a/k/a James McDonald a/k/a Jim McDonald to appear and show cause, if any exists, why he should not be adjudged in contempt for violation of the turnover provision contained in the June 30, 2025 judgment.

The Court expresses no opinion regarding whether contempt ultimately will be established. The ruling is limited to whether Plaintiff has shown sufficient grounds for issuance of an OSC.

Plaintiff must file a proof of service at least five court days before the OSC date showing personal service of the signed order on the alleged contemnor no later than 16 court days before the hearing date.

The Judgment Debtor may file and serve a written opposition to the Order to Show Cause no later than nine court days before the OSC date.

If an opposition is filed, the Judgment Creditor may file and serve a reply brief no later than five court days before the OSC date.

Plaintiff is directed to submit a new proposed order within five court days that is consistent with this ruling.